Umar Daraj Khan vs Fateh Narain on 27 July, 2018

Author: Siddharth

Bench: Siddharth

HIGH COURT OF JUDICATURE AT ALLAHABAD

RESERVED ON:- 30.05.2018

DELIVERED ON:- 27.07.2018

Case :- SECOND APPEAL No. - 774 of 1986

Appellant :- Umar Daraj Khan

Respondent :- Fateh Narain

Counsel for Appellant :- Prakash Gupta,Ashish Gupta

Counsel for Respondent :- Ramendra Asthana

Hon'ble Siddharth,J.

Heard Sri Ashish Gupta, learned counsel for the appellant. No one appears on behalf of the respondent even in the revised list.

This is defendant's second appeal directed against the judgment and decree passed by Sri V.D. Dubey, H.J.S., IIIrd Additional District Judge, Agra dated 02.12.1985 passed in Civil Appeal No. 358 of 1978 confirming the decree of the trial court dated 08.09.1972 passed by Ist Additional Munsif, Agra in Original Suit No. 1100 of 1995.

Plaintiff instituted the suit praying for decree of permanent injunction, possession over suit property, alongwith damages for use and occupation at the rate of Rs. 50 per month against the

defendants. Money decree for Rs. 1,000/- as damages for building material removed and misappropriated by the defendants for their own use after demolition of the plaintiff's construction by the defendants was also prayed.

The plaintiff's case is that he was in possession over property in dispute from time of his ancestors for last more than 100 years; that the plaintiff also built several Khaprail Kothas on a portion of the land in suit which are in possession of the tenants and in a portion thereof is chakki of the tenants of the plaintiff; that ancestors of the plaintiffs were recorded tenants in the revenue records and after commencement of U.P. Zamindari Abolition Land and Reforms Act, 1952, the plaintiff became Sirdar thereof in the year 1952 and is at present Bhoomidhar; that the rights of intermediary came to an end after the U.P. Zamindari Abolition Land and Reforms Act came into force; that the defendants-appellants took forcible possession of the suit property and also demolished two Kothas and Sehan and also the boundary wall of the plaintiff during the pendency of the suit.

The defendants filed their written statement and denied the case set up by the plaintiff and claimed adverse possession over the land in suit; that the defendants claimed that the suit is barred by limitation and they have not made any encroachment and unauthorized construction over the suit property. They denied all the claims of the plaintiff and prayed that the suit may be dismissed.

On the basis of the pleadings of the parties the trial court framed the following issues:-

1) whether the suit is undervalued and court fee paid is insufficient?

2) whether plaintiff is adopted son of Shri Gaya Prasad and he has any right or interest in the property in suit?

3)whether property in suit belongs to defendant no. 1 to 6 only?

4)whether defendants are in adverse possession?

5)whether suit it barred by time?

6)whether plaintiff is a Sirdar?

7)whether court has no jurisdiction to try this suit?

8)whether the description of property are insufficient?

9)whether suit is barred u/s 11 C.P.C.?

10)To what relief, if any, is the plaintiff is entitled?

11)Again whether suit is under valued and court fee paid is insufficient?

12)whether the plaintiff is entitled to damage? If so, its effect?

13)whether the property in suit lies in plot no. 507 as alleged by the plaintiff?

The trial court decreed the suit of the plaintiff against the defendants and restrained them from interfering in his possession. Defendants were further directed to remove their constructions from the suit property within two months from the date of decree and hand over peaceful possession to the plaintiff and damage of Rs. 200 was awarded to the plaintiff against the defendants.

Aggrieved by the judgment of the trial court defendants preferred a Civil Appeal No. 358 of 1978 before the lower appellate court. During the pendency of appeal the defendants filed and application under Order 47, Rule 21, C.P.C. and submitted number of documents to prove that the land in dispute was lis to them by the Zamindar and they constructed the house over the same and their houses are assessed by Nagar Maha Palika, Agra for the purpose of payment of taxes.

Lower appellate court framed the following points for the termination in the appeal:-

1. Whether civil court has jurisdiction to try the suit?

2. Whether the plaintiff or the defendants are the owner in possession of the disputed property?

3. Whether plaintiff is entitled for damages, as per the plaint?

The lower appellate court after considering large number of authorities came into conclusion that the suit of the plaintiff for possession over agricultural land, on which the disputed constructions exists and for injunction restraining defendants from making any construction over the suit land and for removal of construction made by the defendants during the pendency of suit and possession of the suit property, damages and mesne profit is triable only by a civil court and not by revenue court.

The lower appellate court after considering the evidence on record of the trial court and also the additional evidence adduced by the defendants, during the pendency of appeal found that the documents filed by the defendants do not prove them to be owner of the suit property and therefore from the evidence on record the plaintiff was found to be the owner in possession of the suit property. Regarding the last point of damages the lower appellate court held that the damages of Rs. 200 awarded by the trial court is justified and since the plaintiff filed to adduce any evidence regarding the loss of Rs. 1000/- sustained by him therefore the finding of the trial court was confirmed.

The lower appellate court dismissed the appeal of the defendants with costs and the cross-objection of the plaintiffs-respondents regarding enhancement of damages was also dismissed.

Aggrieved by the judgment of both the courts below the defendants have approached this court by way of the second appeal.

This appeal was admitted on 19.03.1986 on the following substantial question of law:-

> "Whether the present suit for possession, demolition and injunction over agricultural land is maintainable in civil court?
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> Learned counsel for the defendant-appellant has argued that the suit for possession over agricultural land was maintainable only before revenue court and civil court had no jurisdiction to entertain the suit. He has relied upon the judgment of the Apex court judgment in the case of Chandrika Misir v. Bhaiya Lal, 1973 AIR SC 2391:-
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> It is from this order that the present appeal has been filed by special leave. It is to be noticed that the suit had been filed in a Civil Court for possession and the Limitation Act will be the Act which will govern such a suit. It is not the case that U.P. Act No. 1 of 1951 authorities the filing of the suit in a Civil Court and prescribes a period of limitation for granting the relief of possession superseding the one prescribed by the Limitation Act. It was, therefore, perfectly arguable that if the suit is one properly entertainable by the civil Court the period of limitation must be governed by the provisions of the limitation Act and no other. In that case there would have been no alternative but to pass a decree for possession in favour of the plaintiffs. But the unfortunate part of the whole case is that the Civil Court had no jurisdiction at all to entertain the suit. It is true that such a contention with regard to the jurisdictions had not been raised by the defendant in the trial Court but where the Court is inherently lacking in jurisdiction the plea may be raised at any stage, and, it is conceded by Mr. Yogheshwar Prasad, even in execution proceedings on the ground that the decree was nullity. If one reads sections 209 and 331 of the U.P. Act No.1 of 1951 together one finds that a suit like the one before us has to be filed before a special Court created under the Act within a period of limitation specially prescribed under the rules made under the Act and the jurisdiction of the ordinary civil Courts is absolutely barred. S. 209 so far as we are concerned reads as follows:
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> "209. Ejectment of persons occupying land without title:-
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> (1) A person taking or retaining possession of land otherwise than in accordance with the provisions of the law for the time being in force, and-
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> (a) where the land forms part of the holding of a bhumidhar, sirdar or asami, without the consent of such bhumidhar, sirdar or asami, and
>
> (b) .....

shall be liable to ejectment on the suit, in cases referred to in clause (a) above, of the bhumidhar, sirdar or asami concerned ..... and shall also be liable to pay damages.

(2) To every suit relating to a land referred to in clause (a) of sub- section (1) the State Government shall be impleaded as as necessary party."

In the present case it has been held that the defendant has been retaining possession of the land contrary to law, being a trespasser; that the land is bhumidhari land and the plaintiffs are bhumidhari. Therefore, the suit was of a description falling under S. 209. Section 331 so far as it is relevant is as follows:

> "331. Cognizance of suits, etc., under this Act.
>
> (1) Except as provided by or under this Act no Court other than a Court mentioned in Column 4 of Schedule II shall, notwithstanding anything contained in the Civil Procedure Code, 1908, take cognizance of any suit, application, or proceedings mentioned in column 3 thereof."

Schedule II at serial no. 24 shows that suit for ejectment of persons occupying land without title under S. 209 should be filed in the court of the Assistant Collector, First Class, which is described as the Court of Original Jurisdiction. In view of Section 331(1) quoted above it is evident that the suit made cognizable by a special court i.e., the Court of the Assistant Collector, First Class, could not be filed in Civil Court and the Civil Court was, therefore, inherently lacking in jurisdiction to entertain such a suit. It is unfortunate that this position in law was not noticed in the several Courts through which this litigation has passed, not even by the High Court which has specifically come to the conclusion that the period of limitation was the one laid down by the rules under U.P. Act No. 1 of 1951. Since the Civil Court which entertained the suit suffered from an inherent lack of jurisdiction, the present appeal filed by the plaintiffs will have to be dismissed.

Reliance of this court's judgment in the case of Bhagwati Devi v. Radhey Shyam and Ors. 1976 AWC 721 has also been placed:

> The trial court repelled the preliminary objection that the suit was pot maintainable in the civil court. The Defendants went up in revision before the District Judge. He held that the land in suit was agricultural, that it had not been demarcated as non-agricultural land under Section 143 of the Zamindari Abolition Act and so it will not loose the character of being an agricultural land to which Section 209 of the Act was applicable. The suit was not cognizable by the Civil Court. He directed the return of the plaint for presentation to the proper court. Aggrieved, the Plaintiff has come to this Court in revision.
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> Section 3(14) of the Zamindari Abolition Act defines 'land' to mean (Except in Sections 109, 143 and 144 and Chapter III) land held or occupied for purposes connected with agriculture, horticulture or animal husbandry which includes

pissiculture and poultry farming. Section 143 applies to use of land for industrial or residential purposes. The land so used can become non-agricultural and case being governed by Ch. VII of the Zamindari Abolition Act if appropriate proceedings are taken under it and the Assistant Collector incharge of the Sub-Division makes a declaration to that effect. Chapter VII includes Section 209 which provides for a suit in the Revenue Court for ejectment from land. So, before a land could be non-agricultural so as to be outside the purview of Section 209, it must be subject of a declaration under Section 143(1). Else, the mere user of land for non-agricultural purposes would not: preclude the applicability of Chapter VII including Section 209. In the present case no declaration under Section 143(1) was sought for by the Plaintiff or granted. Consequently, the land was covered by the definition contained in Section 3(14) of the Zamindari Abolition Act and was within purview of Section 209. In that event Section 331(1) of the Act would come into play and no Court other than the Revenue Court mentioned in column 4 of Schedule II could take cognizance of any suit mentioned in column 3 thereof. The suit was for possession covered by Section 209 of the Zamindari Abolition Act and as such could not be entertained by the Civil Court.

It was then urged that the suit did not relate to possession of land, but only of the constructions built by the Plaintiff of which he had been illegally dispossessed. The constructions were not in the air; they were embedded in the earth, and they pass with the land. When the Plaintiff was dispossessed from the constructions, he will be deemed to have been dispossessed from their site as well. The relief for possession over the Kotha and Sahen could be effectively given only after dispossessing the Defendant from the site and giving possession of the site to the Plaintiff along with the construction. The present suit was, in law, for possession over land with its construction. It lay in the Revenue Court.

Finally, he has relied upon the judgment of the Apex court in the case of Fakir v. Kishori 1995 AIR (SC) 1869, the correctness of the judgment passed in the case of Chandrika Misir v. Bhaiya Lal (supra) was question before the Apex court in the case of Fakir v. Kishori, 1995 AIR (SC) 1569:

Learned counsel appearing on behalf of the appellant has contended that the High Court was in error in not following, the decision of this Court in Chandrika Misir v. Bhaiya Lal, AIR 1973 SC 2391 in which it is clearly laid down that the Civil Court had no jurisdiction to entertain the suit of the nature involved in that case in respect of agricultural plots and that such a suit could be filed only before the Revenue Courts.

Learned counsel for the respondent, on the contrary, has contended that the High Court was justified in not following the decision of this Court in Chandrika Misir's case (AIR 1973 SC 2391) as that decision was based on a concession, on a vital question of law, made by the counsel appearing in this case as also on the ground that the relevant provisions of the ZA and LR Act, relating to the jurisdiction of the Civil

or Revenue Courts were not brought to the notice was therefore, a judgment rendered per incuriam and had no binding effect.

A perusal of the judgment passed by the High Court shows that the High Court did not follow the decision in Chandrika Misir's case for two reasons; the first being that it was based on a concession made by the counsel in that case on a question of law which was not correct and the second being that the judgment was rendered per incuriam.

So far as the concession made by the counsel on the question of law is concerned, may deserve that the concession was not the basis of the Judgment. The observation of the Court in that regard may be quoted below (AIR 1973 SC 2391 at p. 2393):

"But the unfortunate part of the whole case is that the Civil Court had no jurisdiction at all to entertain the suit. It is true that such a contention with regard to the jurisdiction had not been raised by the defendant in the Trial Court but where the court in inherently lacking in jurisdiction the plea may be raised at any stage, and, it is conceded by Mr. Yogeshwar Prasad, even in execution proceedings on the ground that the decree was a nullity."

The portion extracted above would indicate that what was conceded by the counsel in that case was that the question of lack of jurisdiction in the trial court could be raised even at the execution stage. The question that the Civil Court had no jurisdiction to entertain the suit and that the suit could be entertained only by the Revenue Court was not conceded and that question was decided by the Court itself on merits.

Let us now proceed to examine the decision of this Court in Chandrika Misir's case (AIR 1973 SC 2391) (supra) to find out whether the decision was rendered on due consideration of relevant statutory provisions relating to the question of jurisdiction of Civil or Revenue Court in entertaining a suit of the nature, filed by Kishori (respondent no. 1), against Faqir in whose favour the revenue entries existed in the records, even on the date of initiation of consolidation proceedings.

The basis of the decision of this Court in Chandrika Misir's case (AIR 1973 SC 2391) (supra) is the statutory provision contained in Section 331 as also Schedule II of the U.P. Zamidari Abolition and Land Reforms Act. This court quoted the provisions of Section 331 and discussed its relevancy in the light of Schedule II as under (at p. 2393):

"331. Cognizable of suits, etc., under this Act.

(i) Except as provided by or under this Act no Court other than a Court mentioned in Column 4 of the Schedule II shall, notwithstanding, anything contained in the Civil Procedure Code, 1908, take cognizance of any suit, application, or proceedings mentioned in column 3 thereof."

Schedule II at serial No. 24 shows that a suit for ejectment of persons occupying land without title under S.209 should be filed in the court of Original Assistant Collector, First Class, which is described as the Court of Original Jurisdiction. In view of Section 331(1) quoted above it is evident that the suit made cognizable by a special Court i.e., the Court of the Assistant Collector, First Class, could not be filed in a Civil Court and the Civil Court was, therefore, inherently lacking in jurisdiction to entertain such a suit. It is unfortunate that this position in law was not noticed in the several Courts through which this litigation has passed, not even by the High Court which had specifically come to the conclusion that the period of limitation was the one laid down by the rules under U.P. Act No. 1 of 1951. Since the Civil Court which entertained the suit suffered from an inherent lack of jurisdiction, the present appeal filed by the plaintiffs will have to be dismissed."

It is set out in para 1 of the report that the Suit was filed on 5th September, 1955. It will be seen from the portion of the decision extracted above that this Court proceeded to hold that the suit under Section 209 for ejectment of persons occupying land without title could be filed only in the Court of the Assistant Collector, First Class, which was described as the Court of original jurisdiction at serial No. 24 of schedule II of the Act.

U.P. Zamindari Abolition and Land Reforms Act came into force in 1952 and Schedule II, as it originally existed in the Act, did not contain any entry pertaining to the suits under Section 209 of the Act. This entry was introduced for the first time by the U.P. Land Reforms (Amendment) Act No. 18 of 1956 with effect from 28th May, 1956 which repealed U.P. Land Reforms (Amendment) (Second) Ordinance, 1956. Another entry viz. Entry relating to "suit for injunction or for the repair or waste or damage" contemplated by Section 208 of the Act was also included in Schedule II by the aforesaid Amendment Act, with effect from the same date, namely, from 28th May, 1956. Section 23 of the Amendment Act provides as under:

> "Saving: (i) Any amendment made by this Act shall not effect the validity, invalidity, effect or consequence of anything already done or suffered, or any right, title, obligation or liability already acquired, accrued or incurred or any jurisdiction already exercised and any proceeding instituted or commenced before any court or authority prior to the commencement of this Act shall, notwithstanding any amendment herein by such court or authority.
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> (ii) An appeal, review or revision from any suit or proceeding instituted or commenced before any court or authority prior to the commencement of this Act shall, notwithstanding any amendment herein made, lie to the Court or authority to which it would have laid if instituted or commenced before the said commencement."

In view of the above saving provision, the conferment of exclusive jurisdiction on the Revenue Courts by the Amending Act did not affect the pending suits or right of appeal, review or revision available under the original provisions.

The statutory provisions including the entries in Schedule II as originally contained in the Act, were not brought to the notice of this Court in Chandrika Misir's case (AIR 1973 SC 2391) nor was it

brought to its notice that exclusive jurisdiction on the revenue courts was conferred by the amendment introduced in the Act by U.P. Act No. 18 of 1956. Consequently it proceeded to lay down that a suit which was filed on 5th September, 1955 could be filed only in the Court of the Assistant Collector, First Class and not in he Civil Court.

This error was caused on account of non-consideration of the statutory provision as they existed on the relevant date. Since the suits under S. 209 of the Act were made cognizable by the Revenue Court only with effect from 28th May, 1956, the suit in Chandrika Misir's case (AIR 1973 SC 2391) which was filed on 5th September, 1955 was, therefore, cognizable by the Civil Court and not by the Revenue Court.

In the instant case, as pointed out earlier, the suit was filed by Kishori on 5th January, 1954. On that date, in view of the provisions contained in Section 331 as also in Sch.II as they stood then, the suit could be filed only the Civil Court and not in Revenue Court. Consequently, the decree passed in that suit by the trial Court which was upheld by the lower appellate court as also in the High Court by the single Judge and thereafter by the Division Bench, were binding on Faqir against whom the suit was filed and the consolidation Courts were not justified in ignoring those decrees on the ground that this Court in Chandrika's Misir's case (supra) had laid down that a suit under Section 209 could be filed only in the Revenue Court and a decree passed by the Civil Court was a nullity. The High Court, in our opinion, was, therefore, right in allowing the Writ Petition and quashing the orders passed by the consolidation authorities.

Further the Courts below have committed error of law in decreeing the suit by misreading the evidence on the record by failing to consider the material evidence on the record and by not giving the finding on the main controversy about the ownership to the effect whether the Plaintiff-Respondent was sirdar/bhumidhar of the plot in suit. The question whether the Plaintiff-Respondent was sirdar/bhumidhar could only be decided by the Revenue Court and not by the Civil Court.

It is further pointed put that the relief claimed in the suit was with respect to Plot No. 507 and not Plot No. 507/1 which has been adjudicated upon by the Courts below is a distinct plot other than Plot No. 507 and in this view of the matter also the Courts below had no jurisdiction to grant the relief with respect to Plot No. 507/1.

The Courts below have not recorded any finding that the Plaintiff-Respondent became sirdar/bhumidhar under U.P. (Urban) Zamindari Abolition and Land Reforms Act 1956 and no evidence was ever led by the Plaintiff-Respondent that he was occupancy tenant of bhumidhar and thus the title of the Plaintiff could not have been held to have been proved. Even in the earlier judgments filed by the Plaintiff-Respondent it was not proved that he was occupancy tenant or bhumidhar.

Further the suit in the absence of the relief for cancellation of the sale deed dated 29.12.1965 was not maintainable.

From the perusal of the record it is found that Issue no. 6 and 7 regarding title of the plaintiff and maintainability of suit for demolition of an unauthorised construction recovery of damages, etc., was decided in favour of plaintiff and the defendants did not proved the same otherwise. Lower appellate court considered the question of jurisdiction of the civil court and has recorded the finding after considering the judgment in the case of Smt. Bhagwati Devi (supra) of this court and Chandrika Misir (supra) of the Apex Court that in these cases the law has been laid down that if there is some construction on agricultural land and plaintiff claims possession of that construction alongwith land the suit would be triable by the revenue court. On the contrary the suit for removal of construction and recovery of damages for use and occupation of a building and building site and for damages for demolition of construction and misappropriation of building material would clearly lie before the civil court.

Reliance upon the full bench judgment in the case of Ram Awalambh and Ors v. Jata Singh and another AIR 1969 Alld. Page 5 (26) (FB) was made by the lower appellate court and it has been held that the suit for demolition and possession in respect of the agricultural land against the trespasser would lie before the civil court. It has also been held by the full bench of this court that a suit for injunction restraining the defendant from making any construction on the land in suit, for removal of construction made by the defendant during the pendency of the suit and for joint possession is cognizable by civil court only.

Further notice has been taken of the fact that the land in dispute lies in non- ZA area and therefore the suit cannot barred by Section 331 of U.P. Z. A & L.R. Act, 1952. Lower appellate court has further considered that for deciding the issue of jurisdiction the court has to see the pith and substance of the plaint. From the construction of plaint it is clear that the suit of the plaintiff was initially for injunction restraining the defendants from interfering in his peaceful possession over the plot in dispute. During the pendency of suit defendants demolised two Kothas, Sehan, Diwar, etc., and forcibly took possession over the suit land and accordingly the plaint of the suit was amended and further reliefs were incorporated. Therefore, it is clear that the defendants encroached upon property in suit only during the pendency of suit and this will not oust the jurisdiction of the civil court. Lower appellate court has considered the judgments in the case of Bhagwati Devi of this court and Chandrika Misir of Apex Court and has found that the judgments have no application to the facts of the case because the judgments related to the suit of the plaintiff for possession over the agricultural land on which there stood some constructions. In the circumstances, the suit for injunction restraining defendants from making any construction over the suit land, for removal of constructions made by defendants during the pendency of the suit and possession thereof and damages and mesne profi are triable by civil court only has held by the full bench in the case of Ram Awalambh (supra).

Suit of the nature filed by the plaintiff was only cognizable by the civil court as held by this court in the case of Ram Awalambh (supra). The suit was initially only for the relief of injunction and the relief of possession came to be incorporated in the plaint on account of encroachment over the suit land by the defendants during the pendency of suit and further reliefs were incorporated by way of amendment on account of illegal demolition of the construction of the plaintiff by the defendants. Therefore further reliefs were incorporated in the plaint by way of amendment. It was not a suit

simplicitor for possession of agricultural land and therefore as held by the Hon'ble Apex Court in the case of Chandrika Misir (supra), Fakir (supra) and by this court in the case of Bhagwati Devi (supra) the suit of the plaintiff would lie only before the civil court as rightly held by the lower appellate court. In the case of Ram Awalambh this Cout held, The main point for consideration in all cases where on a definite cause of action two reliefs can be claimed is which of the two reliefs is the main relief and which relief or other reliefs are ancillary reliefs. Where from facts and circumstances of the case the relief for demolition and injunction is the main relief there could be no reason why the jurisdiction of the Civil Court should be barred. On the other hand, if it could be said that the main relief, that is to say, the real and substantial relief, could not that cause of action be of possession only then the suit will definitely lie in the revenue court. In our opinion it is difficult to lay down any hard and fast rule that where the suit is brought against a trespasser the only relief which the plaintiff should claim as an effective relief is that of possession and he need not try to obtain an injunction order and get the constructions made by the trespasser demolished. The revenue courts have not been empowered to grant the reliefs of injunction and demolition and in case the defendant refuses to take away the materials from the land in dispute after the decree for possession has been passed against him the main object of the plaintiff would be frustrated. A Civil Court will, therefore, have the power to entertain the suit where the main relief sought by the plaintiff is that of injunction and demolition, a relief which could be granted by the Civil Court only. The relief of possession will be merely ancillary relief which the Civil Court could grant after having taken cognizance of the suit for injunction and demolition. We respectfully with the view expressed by Dayal and Seth, JJ. in the case of Mewa Vs. Baldeo that once the suit is maintainable for the main relief in the Civil Court then there is no bar for the Civil Court to grant all possible reliefs flowing from the same cause of action. We, however, with great respect, differ from the view taken by the Division Bench in the case of Mukteshwari Prasad Tewari Vs. Ram Wali that whenever a suit is for demolition and possession against a trespasser it must always be held that the main relief was that of possession. We are of the view that the determination of the question as to which out of the several reliefs arising from the same cause of action is the main relief will depend on the facts and circumstances of each case.

Further we are of the view that where, on the basis of a cause of action-

(a) the main relief is cognizable by a Revenue Court the suit would be cognizable by the Revenue Court only. The fact that the ancillary reliefs claimed are cognizable by Civil Court would be immaterial for determining the proper forum for the suit;

(b) the main relief is cognizable by the Civil Court the suit would be cognizable by the Civil Court only and the ancillary reliefs, which could be granted by the Revenue Court may also be granted by the Civil Court.

We are also of the view that the above principle will apply also to the suit for injunction and demolition relating to agricultural land and brought against a trespasser. With great respect to the Hon'ble Judge who took a different view it is not possible for us to arrive at the conclusion that as against trespassers the main relief must always be that of possession only. The argument that the definition of the land has slightly changed and therefore the old case law on the point cannot be at all accepted as good law has not appealed to us. It has to be remembered that so far as the plaintiff is

concerned he never intended to make any construction on his land and wants to get back its vacant possession. Therefore, the slight change in the definition of land (so as to exclude the land built upon) can hardly affect the question of jurisdiction.

In view of the legal position discussed above the suit of the plaintiff on the basis of the reliefs prayed therein was cognizable by civil court only as held by both the courts below. Therefore, the substantial question of law framed in this appeal is decided holding that the suit of the plaintiff for possession, demolition and injunction over agricultural land and recovery of mesne profit and damages was maintainable before the civil court as and not before the revenue court.

The second appeal is accordingly dismissed. However the parties shall bear their own costs.

Order Date: 27.07.2018 Rohit